

STATE OF CALIFORNIA – COUNTY OF SANTA CLARA

SEARCH WARRANT AND AFFIDAVIT
(AFFIDAVIT)

Special Agent John Doe, swears under oath and declares under penalty of perjury that the facts expressed by him in this Search Warrant, Affidavit, and the attached and incorporated statement of probable cause are true and that based thereon he has probable cause to believe and does believe that the property described below is lawfully seizable pursuant to Penal Code Section 1524, as indicated below, and is now located at the location(s) set forth below. Wherefore, affiant requests that this Search Warrant be issued.

NIGHT SEARCH REQUESTED: ☐ YES ☐ NO Justification on page(s): ____

AFFIANT'S SIGNATURE: _____
AFTER BEING SWORN

REVIEWED BY: _____
DEPUTY DISTRICT ATTORNEY

(SEARCH WARRANT)

THE PEOPLE OF THE STATE OF CALIFORNIA TO ANY SHERIFF, POLICEMAN OR PEACE OFFICER IN THE Error: Reference source not found: proof by affidavit having been made before me by Error: Reference source not found, that there is probable cause to believe that the property described herein may be found at the locations set forth herein and that it is lawfully seizable pursuant to Penal Code Section 1524, as indicated below by "x"(s) in that it:

- ☐ was stolen or embezzled.
- ☐ was used as the means of committing a felony.
- ☐ is possessed by a person with the intent to use it as means of committing a public offense or is possessed by another to whom he or she may have delivered it for the purpose of concealing it or preventing its discovery.
- ☐ tends to show that a felony has been committed or that a particular person has committed a felony.
- ☐ tends to show that sexual exploitation of a child, in violation of Penal Code Section 311.3 has occurred or is occurring.

YOU ARE THEREFORE COMMANDED TO SEARCH THE PREMISES OF:

LOCATION:

YAHOO!
701 First Avenue
Sunnyvale, CA 94089

Attn: Custodian of Records

FOR THE FOLLOWING PROPERTY:

A.) All stored electronic communications, including email, digital images, buddy lists, and any other files associated with user accounts identified as:

roe1234@yahoo.com

B.) All connection logs and records of user activity for each such account including:

1. Connection dates and times.
2. Disconnect dates and times.
3. Method of connection (e.g., telnet, ftp, http)
4. Data transfer volume.
5. User name associated with the connections.
6. Telephone caller identification records.
7. Any other connection information, such as the Internet Protocol address of the source of the connection.
8. Connection information for the other computer to which the user of the above-referenced accounts connected, by any means, during the connection period, including the destination IP address, connection time and date, disconnect time and date, method of connection to the destination computer, and all other information related to the connection from Yahoo.

C.) Any other records or accounts related to the above-referenced names and user names, including but not limited to, correspondence, billing records, records of contact by any person or entity regarding the above-referenced names and user names, and any other subscriber information, referenced name, and any other subscriber information.

NON-DISCLOSURE ORDER

It is further ordered that Yahoo! not to notify any person (including the subscriber or customer to which the materials relate) of the existence of this order for 90 days in that such a disclosure could give the subscriber an opportunity to destroy evidence, notify confederates, or flee or continue his flight from prosecution

[]
initials

The court orders the entire/designated portion of the affidavit sealed. Said sealed portion shall not be opened except upon order of the court. Designated portion: _____

The court orders that any items seized during the lawful service of this search warrant be disposed in accordance with the law, by the Sacramento County Sheriff's Department, upon adjudication of the case. The

officers serving the search warrant are also hereby authorized, without necessity of further court order, to return seized items to any known victim(s) if such items have been photographically documented.

If necessary, searching officers are authorized to employ the use of outside experts, acting under the direct control of the investigating officers, to access and preserve any computer data.

Searching officers are authorized to videotape and/or photograph the entry and search of the premises described herein, at the discretion of the searching officers.

AND TO SEIZE IT IF FOUND and bring it forthwith before me, or this court, at the courthouse of this court. This Search Warrant and incorporated Affidavit was sworn to as true and subscribed before me this _____ day of _____, 2002, at _____ A.M./P.M. Wherefore, I find probable cause for the issuance of this Search Warrant and do issue it.

(Signature of Magistrate)

Night search approved: YES ☐ NO ☐
(Magistrate's Initials)

Judge of the Superior Court, Santa Clara, State of California

Executed By: _____

Date: _____

Time: _____

**Affidavit in Support of Search Warrant
County of Santa Clara**

Your affiant, Special Agent John Doe, is employed as a full-time, sworn law enforcement officer for the California Department of Justice and has been for the past 10 years. During your affiant's tenure, your affiant has investigated numerous cases involving financial crimes, thefts, computer- and communications-related crimes, robbery, organized crime, homicide and narcotics. Your affiant has developed and taught required Peace Officer Standards and Training (POST) courses for technological investigations. Your affiant has also qualified as an expert witness, on multiple occasions, in several areas of electronic technology and communication. Additionally, your affiant has received advanced training in electronic crimes from the Federal Bureau of Investigation, Quantico, VA, the National Technical Investigators Association, Washington D.C., the High Technology Crime Investigation Association and other industry seminars.

Your affiant is currently assigned to the Sacramento Valley Hi-Tech Crimes Task Force, which operates under the auspice of the Sacramento County Sheriff's Department, and is tasked with the investigation of crimes as they relate to the illegal use, abuse or theft of electronic service, technology and equipment.

On September 11, 2002, your affiant received information from California Department of XYZ, Information Technology employee R. Smith, that computer servers belonging to the Department had been illegally accessed through the Internet. Smith further reported that an unauthorized program had been installed on the computers to relay information garnered from the system to the E-mail account, roe1234@yahoo.com. Smith provided the following statement:

Two California Department of XYZ (DOX) computer systems are responsible for the function of DNS (Domain Name Services) and the system responsible for relaying mail to and from the Internet and GroupWise have been compromised by a hacker. The attack on these systems started at approximately 1825 hours on September 7, 2002.

The attack was detected by a file system baseline utility program (Tripwire), installed on the Unix systems outside the firewall. This attack has resulted in a disruption in statewide Internet email for this department. The hacker was able to capture system information as well as keystrokes, including usernames and passwords, and mailed this information to his private Internet account on Yahoo. Had this event not been detected, the hacker would have been able to capture and monitor DOB Internet traffic.

The method of attack looks to be that of a knowledgeable adversary. There were very few traces of the activity left on the systems. The Tripwire software reported that several file links were removed and that some binary files (Programs) were modified. There were also scripts placed on the systems to log the keystrokes and email them back to the responsible party (hacker). At this time we believe the email address of the hacker to be roe1234@yahoo.com.

The connection logs of the system point to activity from several different sources including France, Yugoslavia, Italy and New York. The time of the incident and the connection log points to New York (64.95.2.154) as the possible source.

Your affiant knows that individuals involved in illegal accessing of computers (hacking) will frequently illegally access computer systems through the Internet and install programs to either illegally control systems, destroy data or obtain data. Your affiant also knows that such an act is a felony under California state law (Pen. Code sec. 502 (c)(1)) and that the nexus of the crime can be at any point of origination or termination within the state of California. Your affiant is aware that yahoo.com is located within the County of Santa Clara, State of California.

Through experience and training, your affiant knows companies offering E-mail services, such as yahoo.com, maintain records related to account registration, connection time and dates, Internet routing information

(Internet Protocol numbers), and message content, that may assist in the identification of person/s accessing and utilizing the account.

Based on the aforementioned information, your affiant believes sufficient probable cause exists for the issuance of a search warrant for:

The following location:

A business, operated under the name of yahoo.com, located at 701 First Ave., Sunnyvale, CA.

For the following items:

All stored electronic communications, including email, digital images, buddy lists, and any other files associated with user accounts identified as:

roe1234@yahoo.com

All connection logs and records of user activity for each such account, including:

1. Connection dates and times.
2. Disconnect dates and times.
3. Method of connection (e.g., telnet, ftp, http)
4. Data transfer volume.
5. User name associated with the connections.
6. Telephone caller identification records.
7. Any other connection information, such as the Internet Protocol address of the source of the connection.
8. Connection information for the other computer to which the user of the above-referenced accounts connected, by any means, during the connection period, including the destination IP address, connection time and date, disconnect time and date, method of connection to the destination computer, and all other information related to the connection from Yahoo.

Any other records or accounts related to the above-referenced names and user names, including but not limited to, correspondence, billing records, records of contact by any person or entity regarding the above-referenced names and user names, and any other subscriber information, referenced name, and any other subscriber information.

Affiant further requests that Yahoo be ordered not to notify any person (including the subscriber or customer to which the materials relate) of the existence of this order for 90 days. Affiant submits that such an order is justified because notification of the existence of this order could seriously jeopardize the ongoing investigation. Such a disclosure could give the subscriber an opportunity to destroy evidence, notify confederates, or flee or continue his flight from prosecution.

Your affiant swears the aforementioned information is the truthful and accurate, to the best of his knowledge.

Special Agent John Doe, Affiant